

Justification & Approval For Other than Full and Open Competition

As a legislative branch agency, the Library is subject to the competition and advertising requirements of 41 U.S.C. § 6101. Like the Competition in Contracting Act and the FAR, 41 U.S.C. § 6101 does not require competition when a contracting officer certifies that only one source or brand-name item is available, when dictated by public exigency, or when otherwise authorized by law.

This document sets forth the justification and approval for award of a contract or order by means providing for other than full and open competition per 41 U.S.C. § 6101, LCR 7-210, and, as applicable, FAR 6.302, FAR 13.106-1, FAR 8.405, and FAR 16.505. Contracting without competition shall not be justified on the basis of a lack of advance planning or concerns related to availability of funds.

This form shall be used to support instances where competition will be limited to a single source, a limited number of sources, including where a brand name product is required.

Part 1 – Identification

1. Contracting Agency and Activity: Library of Congress, Library Collections and Services Group (LCSG), Financial Management Directorate (FMD)

2. Nature of Action Being Approved

- ☒ Contract (or modification)
☐ LoC or Leg Branch Order (or modification)
☐ GSA Schedule or GWAC: Identify Schedule/Contract
☐ Other: Identify

Plan ID Number: 2026-LGO-0004
Contractor (or Brand Name): Springshare
Estimated Value (Base and all options): XXXXXXXXXX
Period of Performance: 7/1/2026-6/30/2031

3. Description of Supplies or Services Required to Meet Library Needs

Describe the supplies or services that are required to meet the Library's minimum needs and the delivery schedule required to meet those needs. Do not focus on a description of the program.

The Library requires the following supplies or services:

The Library requires an integrated public service platform that provides tools designed for the unique, not-for-profit public services of libraries. These services are distinct from for-profit operations and, consequently, do not align to generic commercial software designed for maximizing customer sales. The integrated tools must support and integrate the core public services work of the Library's reference services. The services that need to be integrated include:

Service	Description
Receive and Respond to Library Reference Requests	Requirements - A live chat platform with unlimited concurrent operators, unlimited fallback widgets, and multi-operator internal chat. - Ability to create customized question forms; - A searchable public facing 24/7 accessible knowledge base of FAQs; - Unlimited FAQ Groups - each with own homepage, customization controls, widgets, - A Social Media Management tool to integrate any number of Twitter accounts, Facebook Pages, and Pinterest accounts - Forms and user interfaces for both client-facing and administrative features and functions comply with the Revised Section 508 of the Rehabilitation Act of 1973, as amended (29 U.S.C. 794d) and in accordance with the Contract Clauses for SaaS/PaaS. - reference transaction data reports - Hosting environment to include cloud servers, support, maintenance, and free updates whenever they are available. - Technical support response time within 24 hours of being contacted by a Library designated official or the COR
Create, Edit, and Publish Online Library Guides and Bibliographies	Requirements Ability to create unlimited topical research guides, bibliographies, and other resources to make them available to staff and researchers both on/off site.

	• Ability to customize the layout of individual guides, while adhering to a set of defined templates set by an authorized administrator, group of administrators, or Web Services. • Ability to make the published resources available to patrons externally to the Library as well as internally • Ability to create guides collaboratively with other content authors across the Library • Ability to customize the look and feel of research guides and bibliographies for identity and branding, as well as to create custom (friendly) URLs. • Ability to create research guides and bibliographies that are responsive to different devices (e.g., desktops, tablets, smartphones) and browsers (e.g., IE, Chrome, FireFox). • Ability for automated link checking to identify broken links in published research guides and bibliographies. • Ability to stop access to research guides that are no longer relevant, and to download such guides for archiving • Ability for researchers and staff to print selected guides, or parts of a particular guide. Technical support response within 2 hours of being contacted by the Library.
Scheduling Platform for Library staff in public facing roles	Requirements for the scheduling platform: • Allows 200+ account holders to organize multiple schedules in one place • Ability to add shift notes and assignments • Optimized for mobile devices to allow working away from desk • Built in email functionality
Schedule Library Reference Appointments and Space.	Requirements: • Enables users, or Library staff on behalf of users, to book library spaces online or with mobile phones. • Enables authorized Library staff to set up rooms, spaces, and customize rules and availability • The module enables full check-in and checkout of equipment.
Manage and Record Library Reference Transactional Data	Requirements • An integrated Reference Analytics component with up to 5 data-sets allowing the Library to enhance systems statistics and to record all reference transactions • Collaborative recording and analysis of library statistics and data points. • Ability to store all library public service data in one platform and use cross-dataset analytics. • A tool that provides a graphical interface to create survey and forms for enhancing engagement with staff and patrons that does not require advanced coding knowledge

The contractor also shall provide continuity of technical support and maintenance for the staff and service units in the Library that rely on these tools for researcher and patron engagement. The scope of work in the SOW covers the work listed above in the Springshare ongoing services for "Ask-a-Librarian" and the daily chat services, as well as the included services LibGuides, LibStaffer staff work scheduling tool; LibInsight analytics tool; LibCal resource scheduling tool; and the LibWizard tool.

Part 2 – Program Office Justification & Approval

4. Authority for Contracting Without Competition Over \$350,000

Up to and including \$350,000

For this requirement up to \$350,000, using simplified acquisition procedures under FAR part 13, the basis for contracting without providing for full and open competition is:

- ☐ Only one responsible source is reasonably available to meet Library requirements. 41 U.S.C. § 6101(b); FAR 13.106-1.
- ☐ Product or service is reasonably available from only one source.
- ☐ Source controls copyrights, patents or other exclusive licensing arrangements.
- ☐ Urgent circumstances; only one source can reasonably deliver by required date. Option years are not permitted.
- ☐ Source is expressly authorized or required by statute: Identify the authority

- ☒ Library's needs can only be satisfied by a brand-name product which is essential to the Government's requirement. FAR 6.302-1(c)
- ☐ The Product is listed the Library of Congress Enterprise Architecture Repository (LCEAR) database (Attach applicable

IT Standard Data Sheet)

5. Rationale for Contracting Without Competition

We are authorized to limit competition on the basis of the citation in section 4 because: This contract is a follow-on contract for the continued use of the Springshare online tools in use Library-wide since 2018. The tools and systems are embedded in the day-to-day functioning of multiple platforms across the Library including public facing user interfaces. The Library mission to provide public access is possible through the use of these software-based tools previously not provided by the LOC Office of the Chief Information Office. This purchase links directly to Goals 1 and 2 of the Library's Strategic Plan: Expanding access to our collections, experts, and services; and Enhancing services by creating valuable experiences for every user to forge lifelong connections to the Library.

This procurement consolidates separate software products in one procurement action reducing the administrative cost of awarding and managing separate requirements belonging to one vendor. It is the only product on the market able to address all of the Library's needs as outlined in the statement of work.

Other products with some of the features noted above require installation and have a higher learning curve (e.g., Joomla). None of the other software products currently available on the market offer together all of the tools and functionality required by the Library. Some of the key requirements are listed in the below table.

Evaluation Criteria	Springshare	JSTOR	Joomla	Surpass Software	Koha
Receive and Respond to Library Reference Requests	Yes	Limited-no live chat feature	Limited-no technical support offered; no live chat feature	Limited-no live chat feature	No
Create, Edit, and Publish Online Library Guides and Bibliographies	Yes	Yes	Limited-software not tailored to Library needs	Limited-no ability to publish for mobile device compatibility	Yes
Scheduling Platform for Library staff in public facing roles	Yes	No	No	No	No
Schedule Library Reference Appointments and Space.	Yes	No	No	No	No
Manage and Record Library Reference Transactional Data	Yes	Yes	Limited-no survey tools	Yes	Yes

As demonstrated by the table, only one source, SpringShare, currently provides all the requirements without modification to the software.

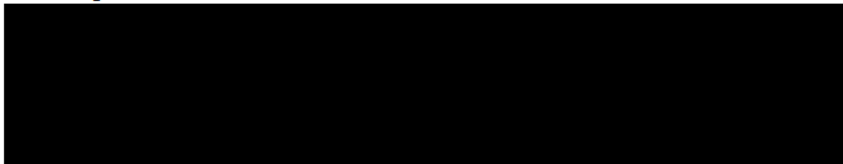
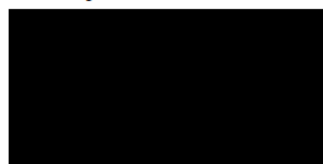
6. Actions to Overcome Barriers to Competition Before Subsequent Contract Is Required

State what actions, if any, the program office can take to overcome barriers to competition before a contracting for this requirement again, such as: using action to provide time to develop specifications for a competitive procurement by a certain date; licensing copyrights or patents so other contractors may use the works; or breaking the requirement into parts that may be purchased competitively. If this is a one-time requirement, explain that action to increase future competition is not needed. If the source is expressly required by statute, state "Source is statutory."

To increase competition, we will: The needs of staff and our users will be assessed during the subscription period and the landscape of available products will be reviewed. If there are other products that offer the full range of functionality and there is an ability to migrate these services to a new platform, other products will be considered at that time.

7. Program Office Certification

I certify that the description of the Government's minimum needs, schedule requirements, and technical information that provide the basis for this justification are accurate and complete.



4/10/2026
Date

PART 3 – CONTRACTING OFFICER DETERMINATIONS & CERTIFICATION

8. Efforts to Solicit from As Many Potential Sources As Practicable

Unless a justification is based on FAR 6.302-2, Unusual and compelling urgency, contracting officers shall post justifications for other than full and open competition, including brand name justifications, to the Contract Opportunities website on sam.gov (or eBuy for Brand Name Justifications under FAR Part 8) prior to requesting a proposal or otherwise entering into negotiations.

- ☐ Advance notice will be published in sam.gov for 15 days before a contract is awarded. FAR 5.203(a).
☒ Advance or concurrent notice will be published in sam.gov for a reasonable time for commercial items FAR 5.203(a) and 12.204(b).

We made the following efforts to interest potential sources in this award: *A detailed market research was performed by the subject matter expert and determined that no sources exist that can compete with Springshare at this time. Posting the J&A for the required 15 days will notify the market. In the event that respondents are found, their product will be evaluated at that time.*

9. Listing of Sources That Expressed Interest in Writing

The following sources expressed interest in this award: N/A

10. Additional Information

The following additional information is relevant to this justification and approval: N/A

11. Contracting Officer Determination that Price Is Fair and Reasonable

As explained in detail below, I have determined that the prices for this contracting action are fair and reasonable based on comparison of the prices to the following (see FAR 15.404-1(b)(2)):

- | | |
|---|--|
| ☒ Historical prices paid by the Government | ☐ Published competitive price lists |
| ☒ Library's Independent Government Estimate | ☐ Prices obtained through market research |
| ☐ Other: | ☐ Prices obtained through competitive proposals |

The following analysis (based on attached pricing information) supports my determination: Fair and reasonableness will be documented in the Contract Review Memorandum (CRB).

12. Contracting Officer Determination of Responsibility

- ☒ Checked System for Award Management (or will check in the case of competitive proposals for a brand name product)

13. Contracting Officer Determination of Best Value

I have determined that this action represents the best value to the Government because: Best Value will be documented in the CRB.

14. Contracting Officer Certification

I certify that, to the best of my knowledge and belief, this justification is accurate and complete. For those actions up to \$900,000, I approve contracting without competition for this requirement.

____Cristina A Vega____
Name

____4/15/2026____
Date